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TRINITY COUNTY
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RESOLUTION NO. 2026-02

A RESOLUTION OF THE BOARD OF DIRECTORS OF POST MOUNTAIN PUBLIC UTILITY DISTRICT, TRINITY COUNTY, CALIFORNIA ORDERING THE SUBMISSION OF A SPECIAL TAX MEASURE TO THE QUALIFIED VOTERS OF THE DISTRICT, REQUESTING CONSOLIDATION WITH NOVEMBER 3, 2026, STATEWIDE GENERAL ELECTION, AND REQUESTING ELECTION SERVICES FROM THE TRINITY COUNTY ELECTIONS OFFICIAL

WHEREAS, the Post Mountain Public Utility District ("District") is an independent special district authorized to provide road maintenance, fire protection, and related services pursuant to the Public Utility District Act (Public Utilities Code §15501 et seq.); and

WHEREAS, road maintenance responsibilities within the Post Mountain area are shared among the District, the Trinity County Department of Transportation, and the United States Forest Service, with the District responsible for approximately 27 miles of local roads serving residents and property owners within the District; and

WHEREAS, the Board of Directors finds that existing revenues are insufficient to adequate maintain and repair the District's road system and that additional locally controlled funding through a special tax will provide a dedicated source of base funding to support road maintenance activities, supplementing other funding sources while the District continues to pursue grants, partnerships, and additional funding mechanisms necessary to address the full cost of maintaining and repairing the District's road systems;

WHEREAS, Article XIII A, Section 4 and Article XIII C of the California Constitution authorize local government agencies to impose special taxes subject to approval by two-thirds of the voters voting on the measure, and Government Code Sections 50075 et seq. and 53724 authorize the governing body of a local agency to submit such a special tax measure to the voters for approval and to provide for the collection of the tax on the property tax roll; and

WHEREAS, the Board of Directors of Post Mountain Public Utility District desires to submit to the qualified voters of the District a measure approving ORDINANCE NO. 2026-01 establishing a special tax to provide funding for road maintenance and related services within the District; and

WHEREAS, pursuant to the California Election Code, it is appropriate for the Board of Directors to request consolidation of the District Election with the November 3, 2026 Statewide General Election and request election services from the Trinity County elections official.

NOW, THEREFORE, BE IT RESOLVED, by the Board of Directors of Post Mountain Public Utility District as follows:

1. **The foregoing recitals** are true and correct and are hereby incorporated by this reference.
2. **Call for Election.** Pursuant to Government Code Section 50077, the Board hereby calls an election to be held within the boundaries of the District on November 3, 2026, for the purpose of submitting to the qualified voters of the District a measure authorizing a special tax.
3. **Ballot Question.** The ballot question to be presented to the voters at said election shall read substantially as follows:

   > "To maintain local road maintenance authority and provide dedicated funding for road maintenance and related services, shall a measure imposing a $100 annual special tax per parcel, raising approximately $100,000 annually until repealed by voters with all funds spent locally, be adopted pursuant to Post Mountain PUD Ordinance No. 2026-01?"

   YES _____ NO _____

4. **Special Tax Ordinance.** The ordinance authorizing the special tax to be submitted to the voters pursuant to this Resolution is Ordinance NO. 2026-01, attached hereto as Exhibit A and incorporated herein by this reference. The Board hereby approves the form of the ordinance and its submission to the voters at the November 3, 2026 election. The District requests that the text of the Ordinance No. 2026-01 be included in the voter information materials prepared for the election, in accordance with applicable provisions of the California Election Code and the practices of the Trinity County elections official.
5. **Request for Consolidation.** Pursuant to Elections Code Section 10400 et seq., the Trinity County Board of Supervisors is hereby requested to consolidate the District election with the Statewide General Election on November 3, 2026. The District acknowledges that the consolidated election will be held and conducted in the manner prescribed in Section 10418.
6. **Request for Election Services.** The District requests that the Trinity County elections official provide all necessary election services and conduct the election, and the District agrees to reimburse the County for all actual costs incurred in conducting the election.
7. **Publication and Filing.** The District President is hereby authorized and directed to take all actions necessary to carry out the purposes of this Resolution, including transmitting certified copies to the Trinity County Board of Supervisors and the Trinity County elections official.

8. **Authorization of Ballot Arguments and Rebuttals.** Pursuant to Elections Code Sections 9162 and 9167, the Board of Directors hereby authorizes the filing of a written argument in favor of the measure submitted by the District, and authorizes the filing of a rebuttal argument in response to any argument submitted against the measure. The Board further authorizes the President of the Board, members of the Board of Directors, and/or their authorized designees to prepare, execute, and timely file such arguments and rebuttal arguments in accordance with applicable provisions of the California Elections Code.
9. **Effective Date.** This Resolution shall take effect immediately upon adoption.

ADOPTED, SIGNED AND APPROVED June 12, 2026, by the following vote:

Ayes: Blong Yang, Kou Vue Yang, Serg Tovalier CHARLES ADKINS

Noes: 0

Abstain: 0

Absent: 0

Blong Yang, President
Board of Directors

Charles Adkin, Vice-President
Board of Directors